

		Defendant is ORDERED to file the amended answer within 2 days. Defendant to give notice.
5	Ford Motor Credit Company LLC vs. The Bros of Hope Corporation 30-2025-01507775-CU-BC-CJC	Motion to Compel Arbitration and Stay Proceedings Defendant Cyrille Tarla's unopposed Motion to Compel Arbitration and Stay Proceedings is GRANTED. The Retail Installment Sales Contract includes an arbitration provision which covers the claims asserted in the Complaint. (Tarla Decl., Ex. A ["Any claim or dispute ... which arises out of or relates to your credit application, purchase or condition of this Vehicle ... shall at your or out election, be resolved by neutral, binding arbitration ..."].) The matter is STAYED pending arbitration. Arbitration Status Review set for 5/27/2027 at 1:30 PM. The parties are ORDERED to file a Joint Status Report 5 days prior. Clerk to give notice.
6	Cardona vs. Maruchan 30-2025-01525470-CU-WT-CJC	Motion to Compel Arbitration and Stay Proceedings Defendant Priority Business Services, Inc.'s Motion to Compel Arbitration and Stay Action is GRANTED. Defendant's objections to the declaration of Plaintiff are OVERRULED. The Court will consider Defendant's new declaration filed in reply to the extent the declaration responds to an issue raised in opposition – whether Plaintiff executed a Spanish-language version of the arbitration agreement. Defendant asserts that as part of Plaintiff's hiring process, she electronically signed an arbitration agreement. Plaintiff does not dispute executing the agreement. She opposes the motion on the grounds that (1) the agreement does not identify the "Company" and was not signed by an employee of Defendant, (2) the agreement is unconscionable because it was part of a click-through onboarding screen which did not provide Plaintiff, a Spanish speaker, a Spanish explanation of its contents, and (3) the agreement states it is subject to "controlling law" including the California Arbitration Act without expressly providing for the requirements of <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24

		Cal.4th 83 (<i>Armendariz</i>), including fair allocation of costs and adequate discovery. Plaintiff also opposes the attempt of Defendant Maruchan, Inc., a non-signatory, to require Plaintiff to arbitrate her claims against it. First, the agreement is binding despite moving Defendant's failure to execute the agreement. "A party who has signed a written contract may be compelled specifically to perform it, though the other party has not signed it, if the latter has performed, or offers to perform it on his part, and the case is otherwise proper for enforcing specific performance." (Civ. Code, § 3388.) In the context of Plaintiff signing employment documents, it was sufficiently clear that Plaintiff agreed to arbitrate claims against Defendant. Second, Defendant has shown Plaintiff was given the option of completing onboarding documents in Spanish, including a Spanish version of the arbitration agreement. (Reply Decl. of Alvarez, ¶ 3.) Here, Plaintiff signed the Spanish version of the agreement. (Id. at ¶¶ 11-12.) Third, the agreement is not unconscionable as a matter of law. Defendant is not required to explain the agreement to Plaintiff or attach a copy of the applicable arbitration rules. The agreement sufficiently states it is subject to the procedures of the California Arbitration Act (CAA) and that Defendant shall pay for arbitration costs. It does not limit Plaintiff's rights to conduct discovery under the CAA or prevent Plaintiff from using any other procedure required under <i>Armendariz</i>. Plaintiff has not cited case law holding that the CAA's procedures are unconscionable. Defendant Maruchan, Inc's Joinder to Motion to Compel Arbitration The joinder of Defendant Maruchan, Inc., which was not a signatory to the agreement is GRANTED. Plaintiff alleges Maruchan, Inc. and moving Defendant were Plaintiff's dual employers. (Complaint, ¶¶ 6, 18.) Moving Defendant is a temporary staffing agency which assigned Plaintiff to work for its client, Maruchan, Inc. (Cox Decl., ¶¶ 2-3.) The agreement expressly applies to moving Defendant and its "owners, directors, officers, managers, employees, agents, and affiliated parties with its employee benefit and health plans." (Ex. B.) Under equitable estoppel, "a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff
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		to arbitrate its claims when the causes of action against the nonsignatory are 'intimately founded in and intertwined' with the underlying contract obligations." (<i>DMS Services, LLC v. Superior Court</i> (2012) 205 Cal.App.4th at 1346, 1354.) Here, Plaintiff's claims against moving Defendant and Maruchan, Inc. are intertwined because Plaintiff alleges she was concurrently employed by both Defendants. Moreover, the language of the agreement encompasses Defendant's agents and affiliates. The case is STAYED pending arbitration. Arbitration Status Review set for 5/27/2027 at 1:30 PM. The parties are ORDERED to file a Joint Status Report 5 days prior. Clerk to give notice.
7	Diamond Peo, LLC vs. Kamran Staffing, Inc. 30-2022-01247086-CU-BC-CJC	Motion to Amend Judgment Plaintiff and Cross-Defendant Diamond PEO, LLC's motion for an order amending the judgment entered on September 5, 2024, to add Antonio Enciso, an individual, and Azul Staffing Group, LLC, a California limited liability company, as additional judgment debtors is DENIED. There is no evidence the proposed additional judgment debtors, Antonio Enciso and Azul Staffing Group, LLC, were served with the moving papers. Due process requires the proposed additional debtors be given notice and an opportunity to be heard. Clerk to give notice.
8	Chao vs. Chao 30-2024-01416045-CU-OR-CJC	Motion for Confirmation of Sale of Real Property Partition Referee Matthew L. Taylor's motion for confirmation of sale of real property is GRANTED. <u>Standard on Motion to Confirm Partition Sale</u> The purchaser, partition referee, or any party may move to confirm or set aside a partition sale. (Code Civ. Proc., § 873.720, subd. (a).) The moving party must give no less than 10 days' notice of motion to the purchaser and all other parties who have appeared in the action. (<i>Id.</i>, § 873.720, subd. (b)(1)-(2).) "At the hearing, the court shall examine the report and witnesses in relation to the report." (Code Civ. Proc., § 873.730, subd. (a).) "The court may confirm the sale notwithstanding a variance from the prescribed terms of sale if to do so will be beneficial to the parties and will not result in substantial prejudice to persons interested in the